

Val Kishan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 December 2015 · Writ-C No. 65914 of 2015 · Writ-C No. 65914 of 2015 · **Writ disposed; petitioner relegated to Clause 16.1.4 for instalments.**

HEADNOTE

A writ seeking to quash a Tehsildar recovery citation for unpaid Power Corporation dues was disposed of without examining the citation, with liberty to the consumer to approach the Competent Officer under Clause 16.1.4 of the Electricity Supply Code, 2005 for payment in instalments.

FACTUAL SUMMARY

Val Kishan petitioned the Allahabad High Court to quash a Tehsildar recovery citation dated 14 September 2015, issued after he failed to deposit in the bank the amount raised by the respondent Power Corporation. His only plea was that he was ready to pay the demanded amount if it were allowed in instalments. Counsel for the Power Corporation informed the Court that a facility of instalments was available under Clause 16.1.4 of the Electricity Supply Code, 2005. The Division Bench of Dilip Gupta and Mukhtar Ahmad JJ. heard the writ on 8 December 2015.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::16.1.4

instalment-facility

HOLDING

Where a consumer facing a Tehsildar recovery citation for unpaid Power Corporation dues seeks only that the amount be accepted in instalments, Clause 16.1.4 of the Electricity Supply Code, 2005 affords that facility before the Competent Officer. The writ was disposed of with liberty to approach that officer; the recovery citation was not quashed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TEHSILDAR RECOVERY CITATION DATED 14 SEPTEMBER 2015 WAS LIABLE TO BE QUASHED

Petition disposed with liberty to seek instalments under Clause 16.1.4; the citation was not examined on merits. ¶ 1